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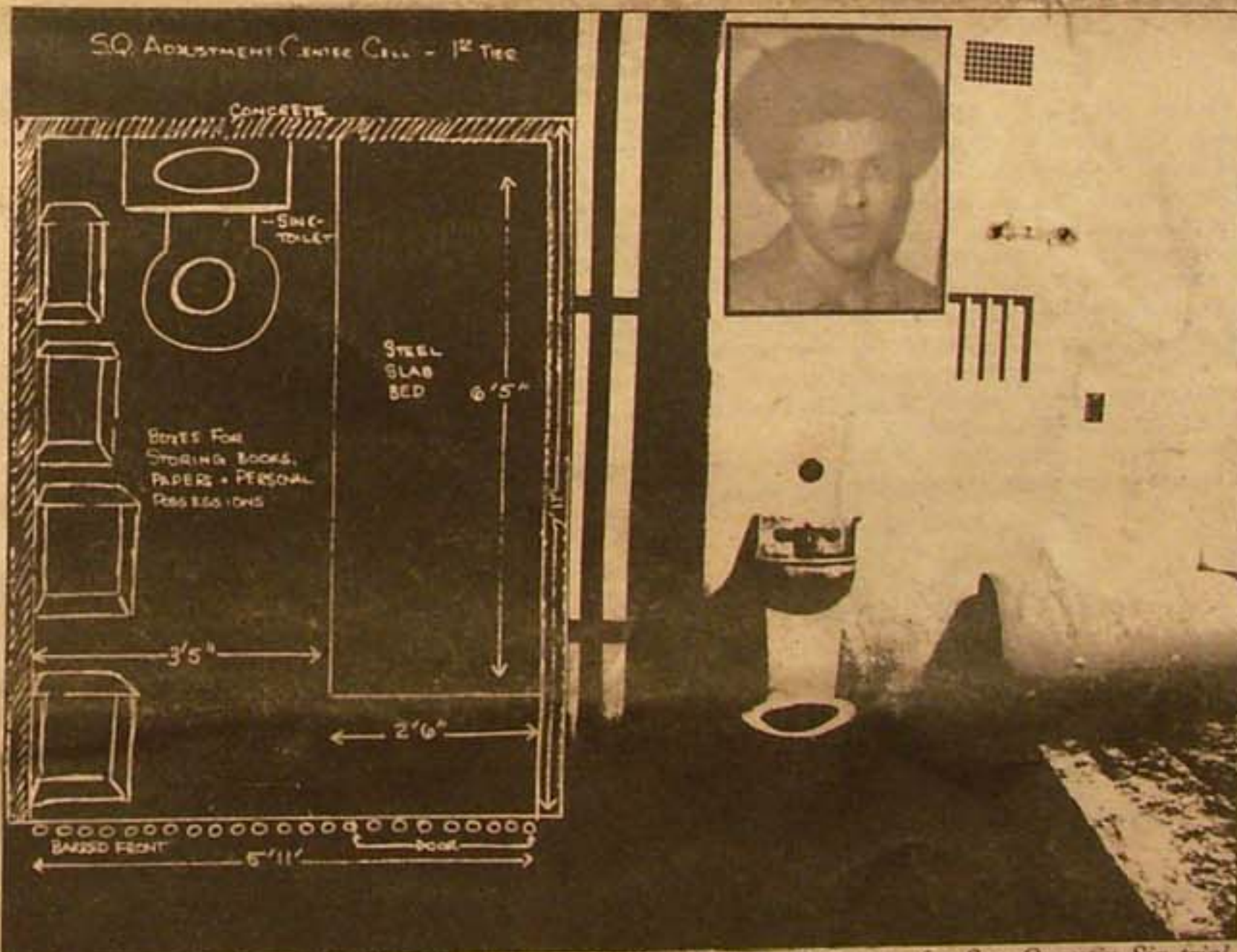


Diagram and photo of San Quentin Adjustment Center cell. Because of a San Quentin Six trial juror's hatred of the Black Panther Party, defendant JOHNNY SPAIN (inset), a Black Panther Party member, was sentenced to serve 23 hours a day in such a cell for the next 23 years.

(San Rafael, Calif.) — Evidence of a conspiracy by the jury in the San Quentin 6 case — spearheaded by the personal vendetta of a bitter woman juror — directed against the Black Panther Party in general and defendant Johnny Larry Spain in particular, was revealed in a supplemental motion for a new trial filed last week by attorney Charles Garry.

According to the motion and attached declaration from the noted BPP chief counsel, during the initial jury selection juror Patricia Fagan failed to disclose her extreme bias and negative attitudes towards: (1) the Black Panther Party; (2) testimony by psychologists and psychiatrists; (3) the use of a psychiatric defense by defendants.

When Fagan did reveal certain of her prejudices to presiding trial judge Henry Broderick, the motion charges that Broderick perpetuated the cover-up by never once mentioning her admission to the attorneys for the defense.

Compounding the infractions, the motion reveals that Fagan told her fellow jurors — 11 Whites, one Black — of her hatred for the Black Panther Party during the course of the trial, but that not one of the jurors or alternates reported this to those responsible for ensuring a fair trial.

Garry's legal action both calls for a new trial on these grounds and seeks the disqualification of Judge Broderick from ruling on the motion.

Filed in Marin Superior Court on Friday, CONTINUED ON PAGE 10

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